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Trump administration sues to block California's new 'Glock ban'

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California's newly implemented "Glock ban" law has been met with a fresh lawsuit from the Trump administration, which argued that prohibiting the sale of pistols that can be converted into machine guns violated the Constitution.

The suit, which was filed in federal court Wednesday and names California Attorney General Rob Bonta as a defendant, is the latest in a growing list of clashes between states and the federal government over gun ownership.

Assembly Bill 1127, by Assembly Member Jesse Gabriel, D-Encino (Los Angeles County), was intended to close what he described as a loophole in an existing federal ban on machine guns: a semiautomatic firearm that can be converted into a fully automatic weapon with simple implement known as a "Glock switch."

"These devices are cheap, can be made at home with a 3D printer, and installable in minutes with only a screwdriver," Gabriel's office said of the devices.

While the law doesn't explicitly name Glock, the manufacturer has become a central target for firearm debates across the U.S., due to the guns' ease of modification and popularity with criminals.

The bill easily sailed through California's Democratic supermajority Legislature and was signed into law by Gov. Gavin Newsom in October. The law took effect Wednesday.

In their lawsuit, Assistant Attorney General Harmeet Dhillon and acting Attorney General Todd Blanche argued that California can't outlaw "perfectly legal and safe firearms" just because they can be converted into illegal weapons.

"This is not the law," the suit stated. "A legal shotgun can be turned into an illegal sawed-off shotgun in a matter of seconds with a common hacksaw. Surely, this does not mean the State can outlaw shotguns."

"Our office is committed to defending California's effective and constitutional gun safety laws, including laws that protect the public from the proliferation of machine guns and from unsafe handguns that have not passed consumer safety and testing requirements," Bonta's office said in a statement to the Chronicle. "We will review the complaint and respond as appropriate in court."

While announcing the lawsuit, Blanche described the Second Amendment as a "sacred right belonging to all Americans, even those in California."

"California cannot ban the most popular type of handgun in America," Blanche said in the statement. "We will work to stop this blatant trampling of our rights by the California government to protect the rights of lawful gun owners."

The Justice Department filed a concurrent lawsuit against the Commonwealth of Virginia and the Virginia State Police over the state's recent ban on the sale of AR-15-style rifles.

Both the California and Virginia suits were filed as part of the DOJ's new Second Amendment Section, which was created to investigate and litigate alleged governmental infringements of gun rights. The section to date has sued at least six state and local jurisdictions over what it described as unconstitutional practices regarding gun permits and laws, including Colorado, the District of Columbia and the Philadelphia Police Department.

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